

FHS Ethics: Free Will and Responsibility

Readings:

Required Readings

- Strawson, P.F. 1962/2008. "Freedom and Resentment." In *Freedom and Resentment and Other Essays*, 1-28. New York: Routledge.
- Frankfurt, Harry G. 1969. "Alternate Possibilities and Moral Responsibility." *The Journal of Philosophy* 66 (23):829-839.
- Ekstrom, Laura. 2005. "Libertarianism and Frankfurt-style Cases." In *The Oxford Handbook of Free Will*, 1st Edition, edited by Robert Kane, 309-322. Oxford: Oxford University Press.

Optional readings:

- Fischer, John Martin. 2006. "Free Will and Moral Responsibility." In *The Oxford Handbook of Ethical Theory*, edited by David Copp, 321-356. Oxford: Oxford University Press.
- van Inwagen, Peter. 1975. "The Incompatibility of Free Will and Determinism." *Philosophical Studies* 27:185-99.
- Strawson, Galen. 1994. "The Impossibility of Moral Responsibility." *Philosophical Studies* 75:5-24.
- Ekstrom, Laura. 2003. "Free Will, Chance, and Mystery." *Philosophical Studies* 113:153-180.

Past Year Questions

Is the practice of holding each other responsible immune to the types of sceptical threats posed by the thesis of determinism? [2023-2024]

‘The metaphysical conditions required for an agent’s responsibility will vary according to the value of the action he performs.’ (SUSAN WOLF) Is that so? [2022-2023 I]

Can we solve the problem of free will by appealing to the value of practices of holding responsible? [2022-2023 II]

“Incompatibilists are fundamentally concerned about the fairness of holding people responsible, but the fairness of holding someone responsible has nothing to do with whether they were free in any strong sense.” Is this a good argument for compatibilism? [2021-2022]

Part I: The Problem of Free Will and Determinism

Basically, the most fundamental and basic aspects of the literature

Frankfurt, Harry G. 1969. "Alternate Possibilities and Moral Responsibility." *The Journal of Philosophy* 66 (23):829-839.

- Principle of Alternate Possibilities: someone acted freely just when they could have done otherwise
 - Intuition: we want to say individuals who are coerced are not free, and people who are coerced could not have done otherwise
- Frankfurt's Objection: lack of moral responsibility is not entailed by his having been unable to do otherwise
 - A person being coerced to act only entails that he may not have done otherwise and that he bears no moral responsibility for his action
 - The PAP asserts that a person bears no moral responsibility for having performed an action if there were circumstances that made it impossible for him to avoid performing it
 - But there may be circumstances that make it impossible for a person to avoid performing some action without those circumstances in any way bringing it about that he performs that action
 - It matters why they did something
- Frankfurt style cases: Cases in which Jones could not have done otherwise due to a threat, but Jones' choice coincided with the action that the threat demanded of him
→ Jones could not have done otherwise but is still morally responsible
 - Case 1: Consider Black who has a switch to change Jones mind if he chooses not to kill Mary. Jones is unaware of this, but never attempts not to kill Mary (and so Black's device never gets activated), and kills Mary in the end. Even though Jones could not have done otherwise, he is still responsible
 - Case 2: Consider a case in which Jones has already decided to kill Mary. He is then coerced to kill Mary, for if he doesn't, Black will kill him. Jones would have submitted to the threat wholeheartedly if he had not already made the decision that coincided with the one demanded of him
- Frankfurt's Revision: a person is not morally responsible for what he has done if he did it because he could not have done otherwise

van Inwagen, Peter. 1975. "The Incompatibility of Free Will and Determinism." *Philosophical Studies* 27:185-99.

- Determinism: conjunction of two theses
 - For every instant of time, there is a proposition that expresses the state of the world at that instant
 - If A and B are any propositions that express the state of the world at some instants, then the conjunction of A with the laws of physics entail B

- Free will: understood in terms of the power or ability of agents to act otherwise than they in fact do
 - To deny that men have free will is to assert that what he does and can do coincide
 - We make claims about an agent's abilities by using sentences of the form: "S can render [could have rendered]...false" where "..." is some name of propositions
- Inwagen's Thesis: Suppose there is a case in which a certain agent S, after due deliberation, refrained from performing a certain contemplated act. If determinism is true, then that man could not have performed that act
 - The argument (where P0 denotes the state of the world at T0, before J was born) – specifically, J is a judge whose raised hand at time T would have prevented an execution (P), but refrained from doing so after deliberation
 - If determinism is true, then the conjunction of P0 and L entails P (1)
 - If J had raised his hand at T, then P would be false (2)
 - If (2) is true, then if J could have raised his hand at T, J could have rendered P false (3)
 - If J could have rendered P false, and if the conjunction of P0 and L entails P, then J could have rendered the conjunction of P0 and L false (4)
 - If J could have rendered the conjunction of P0 and L false, then J could have rendered L false (5)
 - J could not have rendered L false (6)
 - If determinism is true, J could not have raised his hand at T
- Conditional Analysis
 - S could have done X really means "If S had chosen to do X, S would have done X"
 - Even if determinism is true, it is possible that Smith did not save but could have saved the drowning child, since the conjunction of determinism with "Smith did not save the child" does not entail the falsity of "If Smith had chosen to save the child, Smith would have saved the child"
 - Objections
 - Is the conditional form really the correct analysis of "S could have done X"?
 - Inwagen's Objection: We can reframe premise (6) to be "It is not the case that if J had chosen to render L false, J would have rendered L false" (6a)
 - Inwagen's second Objection: suppose we replace the entire argument with expressions of "If S had chosen to do X, then he would have done X" – if all the premises of this new argument are true, the main argument is, by the conditionalist's own lights, sound. But if one of the

premises is false, the clearly the semantic values of the conditional statement and unconditional statement are different and we have a counterexample to the conditionalist's claim

Fischer, John Martin. 2006. "Free Will and Moral Responsibility." In *The Oxford Handbook of Ethical Theory*, edited by David Copp, 321-356. Oxford: Oxford University Press.

The Challenge

- Our self-conception as free and that we have a distinctive sort of control is threatened by determinism
 - We often assume that the future is a garden of forking paths and we have more than one available path
 - Determinism: a complete statement of the laws of nature and a complete description of the temporally nonrelational or "genuine" facts about the world at some time T entail every truth about the world after T
- Assuming that incompatibilism is true i.e. that causal determinism and the sort of free will which involves alternative possibilities, we can explore the implications on morality

Deliberation and Practical Reasoning

- Charles Taylor and Van Inwagen
 - Taylor argues that deliberation is conceptually impossible unless one believes the outcome is "**up to me**," implying a choice between alternatives that is incompatible with determinism.
 - Some philosophers have argued that it is a conceptual truth that I cannot engage in deliberation if I do not believe that I have free will in the sense that involves alternative possibilities. After pointing out that I can deliberate only about my own behavior (and not the behavior of another), that I can deliberate only about future things (rather than present or past things), and that I cannot deliberate about what I already know that I am going to do, Richard Taylor adds, "and, finally, I cannot deliberate about what to do, even though I may not know what I am going to do, unless I believe that it is up to me what I am going to do."⁵ He goes on to argue that the relevant notion of "up to me" is incompatible with causal determinism; on this notion, an act's being up to me implies that it is up to me whether or not I do it.
 - Van Inwagen adds that a person who deliberates while believing they lack free will is **contradicting themselves**, as deliberation manifests a belief that both options are possible.
 - Example: person in a room with two doors (one locked, one unlocked); he argues one cannot deliberate about which door to *leave by* if they know one is impassable

- Peter van Inwagen holds a view which is similar to, but slightly different from, Taylor's. On van Inwagen's account, an agent who believes he lacks free will (in the sense of alternative possibilities) can deliberate, but in so doing he would be contradicting himself. Van Inwagen says, "In my view, if someone deliberates *about whether to do A or to do B*, it follows that his behavior manifests a belief *that it is possible for him to do A—that he can do A*, that he has it within his *power to do A—and that it is possible for him to do B.*"⁶ Thus, an individual who sincerely believes that he lacks free will (understood as above) would be contra-dicting himself in deliberating—he would be holding an inconsistent set of be-liefs. Whereas this is not impossible, it is certainly undesirable; for example, holding inconsistent beliefs guarantees that at least one of one's beliefs is false
- Searle
 - Searle contends that practical reasoning would have **no point** if we knew determinism were true.
 - He identifies a "**gap**" in our experience where we sense that reasons and psychological antecedents are not "causally sufficient" for our decisions.
 - The gap can be given two equivalent descriptions, one forward-looking, one backward. Forward: the gap is that feature of our conscious decision making and acting where we sense alternative future decisions and actions as causally open to us. Backward: the gap is that feature of conscious decision making and acting whereby the reasons preceding the decisions and the actions are not experienced by the agent as setting causally sufficient conditions for the decisions and actions. As far as our conscious experi-ences are concerned, the gap occurs when the beliefs, desires, and other reasons are not experienced as causally sufficient conditions for a decision (the formation of a prior intention).
 - **Example:** He compares the belief in determinism during deliberation to **taking a headache pill**; if you know the pill will work by itself, there is no point in making a "psychological effort" to cure the headache.
 - Searle's Three Theses:
 - 1. We have experiences of the gap of the sort I have described.
 - 2. We have to presuppose the gap. We have to presuppose that the psychological antecedents of many of our decisions and actions do not set causally sufficient conditions for those decisions and actions.
 - 3. In normal conscious life one cannot avoid choosing and deciding
 - Here is the argument for 2 and 3: If I really thought that the beliefs and desires were sufficient to cause the action then I could just sit

back and watch the action un-fold in the same way as I do when I sit back and watch the action unfold on a movie screen. But I cannot do that when I am engaging in rational decision making and acting. I have to presuppose that the antecedent set of psychological conditions was not causally sufficient. Furthermore, here is an additional argument for point 3: even if I became convinced of the falsity of the thesis of the gap, all the same I would still have to engage in actions and thus exercise my own freedom no matter what. . . .

- Fischer counters Searle by arguing that as long as there is an "**epistemic gap**" (we do not *know* what we will choose), deliberation remains a rational way to figure out what we have sufficient reason to do
 - Searle's view about deliberation falls prey to the same objections as the views of Taylor and van Inwagen. I believe that there would be a clear point to deliberation and practical reasoning, even if I were to reject the gap: I would still have an interest in—and deeply care about—figuring out what I have reason to do and seeking to act accordingly. Even if the gap thesis is false, and antecedent psychological states are causally sufficient for my decision, and I know this, it does not follow that I know what decision I will make and what action I will perform. Hence, insofar as I care about acting in accordance with what I have all-things-considered reason to do, there is a clear point to engaging in deliberation.
 - E.g. In Searle's analogy you know that the pill will cure your headache; in contrast, I am not assumed to know whom I will vote for in the next election. If I did know whom I would vote for, I agree that the point of making up my mind would appear to vanish
- Kantian Approaches
 - Neo-Kantians like Hilary Bok and Christine Korsgaard propose a **two-perspective approach**. They argue that while theoretical reason may see us as part of a causal order, **practical reason** requires us to see ourselves as standing in an "**order of reasons**" where we are the authors of our actions.
 - Bok: "If, when we engage in practical reasoning, we must regard ourselves as standing in the order of reasons rather than the order of causes, and if those orders are distinguished from one another by the relations of necessity to which they appeal, when we engage in practical reasoning we will not regard ourselves as subject to the same sort of necessity appealed to by theoretical reason. Theoretical necessity is causal: one object acts on another, thereby rendering some change in the latter necessary. To see oneself as necessitated in this way is to see oneself as passive: acted on rather than acting...Because we regard ourselves as subject not to causal but to

rational necessity, when we engage in practical reasoning we regard ourselves not as the passive object of external forces but as determining our own conduct; not as acted on by things outside us but as choosing for reasons that we are free to accept or reject. And we regard these choices not as events that might simply befall us and with which we might or might not identify but as necessarily our own. For these reasons, as Christine Korsgaard writes, "[a]t the moment of decision, you must regard yourself as the author of your action."

- Fischer critiques this as an "unattractive compartmentalisation," arguing that one can simultaneously acknowledge being causally determined while engaging in practical reasoning
 - He further contends that he can at the same time (or from the same "perspective") acknowledge both that my choice is causally determined (and thus that I have but one path genuinely available to me) and deliberate about which choice to make. That is, when I am engaged in practical reasoning and deliberation, I can continue to believe, and to acknowledge, that I am causally determined and thus not free.
 - This follows from the fact that the theses I acknowledge are metaphysical contentions the truth of which can leave an epistemic gap and from the distinctive purpose of practical reasoning. I can thus accept that the characteristic purposes of theoretical and practical reasoning diverge, while maintaining that an agent engaged in practical reasoning can in fact continue to hold such deliverances of theoretical reasoning as that he is causally determined and thus not free (in the sense of possessing alternative possibilities, construed incompatibilistically).

Moral Responsibility

- The Concept of Moral Responsibility
 - **The Moral Ledger View:** Responsibility consists of being an appropriate candidate for moral predicates (e.g., "good," "bad," "cruel"), effectively making marks on a metaphorical ledger
 - **The Explanatory View:** Responsibility is the expectation that an agent can provide an explanation for their behaviour
 - **The Strawsonian View:** Being responsible means being an **apt target for "reactive attitudes"** like gratitude, resentment, or indignation
- Principle of Alternative Possibilities and Frankfurt-type examples
- Source Incompatibilism
 - Even if PAP is false, some argue that determinism still rules out responsibility because the "**causal buck**" does not stop with the agent

- Robert Kane has argued that in order to be morally responsible, we have to meet a condition of “ultimacy,” according to which the “causal buck must stop here”; that is, we cannot be mere intermediate links in a causally deterministic sequence which begins prior to our births
- Similarly, Laura Ekstrom argues that the past and laws “push” us into our choices and actions if causal determinism is true. She thus argues that causal determination in the actual sequence is incompatible with moral responsibility

Ethical Judgements

- Judgements of Deontic Morality
 - Judgements of “wrongness, rightness” etc
 - Ishtiyaque Haji argues that while moral responsibility might be compatible with determinism, these **deontic judgements** are not, because they rely on the "ought-implies-can" maxim
 - If determinism is true, one cannot do anything other than what they actually do, meaning they never "ought" to have done otherwise
- Copp’s Defence of the Ought-implies-Can Maxim
 - **Fairness:** It is morally unfair to require an agent to do something they lack the ability to do
 - **Example:** A boss demanding a mail carrier cook a soufflé in five minutes when the carrier does not know what a soufflé is
 - **Guidance:** Moral requirements must provide guidance among options; if an agent has no options because they can only do one thing, the requirement serves no purpose
- Judgements of Deontic Morality and Moral Responsibility
 - Fischer’s reply: we must distinguish between "**simple**" and "**complex**" omissions
 - Let us first consider Copp’s argument from fairness. More specifically, the contention *is that it would be unfair to hold someone blameworthy for failing to do X, if he could not do X*. In order to bolster this judgment, Copp invokes an example in which it does seem unfair to require a mail carrier to cook a soufflé for everyone in the post office in five minutes. But I would reply that it is crucial to distinguish two importantly different sorts of omissions: “simple” and “complex” omissions. If one focuses solely on complex omissions, it does indeed seem as if it would be *un-fair to hold an individual blameworthy for failing to do X if he is unable to do X*. But my *intuitions about simple omissions* are quite different.

- **Example:** Stanley deliberately stays still. Even if a person would have paralyzed him had he tried to move, he is still **blameworthy for staying still** if he does so on his own
- Fischer argues that we can still make judgements about what agents have "**sufficient reason**" to do, and criticize them for failing to meet those standards, even in a deterministic world
 - Under this "actual-sequence" approach, one might give up the "circle of deontic judgements" while maintaining a **robust sense of moral responsibility** based on the quality of an agent's practical reasoning
 - So, an actual-sequence theorist might say that an agent is blameworthy insofar as his practical reasoning fails to meet some standard (that it is reasonable to expect people to meet). Perhaps the agent was insufficiently attentive to reasons that exist in the relevant situation, or perhaps the agent failed to weigh some reasons appropriately. We can make these judgments quite apart from supposing that an agent should have (and thus could have, given the Maxim) done otherwise. An agent would be blameworthy, on this view, in virtue of a defective exercise of (unimpaired) practical reasoning (or perhaps even a failure to engage in practical reasoning where we would expect someone to do so). On this view, the actual-sequence theorist gives up the circle of "deontic judgments" but keeps a robust sort of moral responsibility.

Part II: Incompatibilism

No free will

Strawson, Galen. 1994. "The Impossibility of Moral Responsibility." *Philosophical Studies* 75:5-24.

- Basic Argument: makes no difference whether determinism is true or false and we cannot be truly or ultimately morally responsible for our action either way
 - Key Ideas: Nothing can be causa sui, in order to be truly morally responsible for one's actions one would have to be causa sui, at least in crucial mental aspects, therefore nothing can be truly morally responsible
- Basic Argument in full
 - Interested in free action, we are particularly interested in actions that are performed for a reason
 - When one acts for a reason, what one does is a function of how one is mentally speaking
 - So if one is to be truly responsible for how one acts, one must be truly responsible for how one is, mentally speaking – at least in certain respects
 - But to be truly responsible for how one is, mentally speaking, in certain respects, one must have brought it about that one is the way one is, mentally

speaking, in certain respects. And it is not merely that one must have caused one self to be the way one is, mentally speaking. One must have consciously and explicitly chosen to be the way one is, mentally speaking, in certain respects, and one must have succeeded in bringing it about that one is that way

- But one cannot really be said to choose, in a conscious, reasoned, fashion, to be the way one is mentally speaking, in any respect at all, unless one already exists, mentally speaking, already equipped with some principles of choice P1(preferences, values, pro-attitudes, ideals) in light of which one chooses how to be
- But then to be truly responsible, on account of having chosen to be the way one is, mentally speaking, in certain respects, one must be truly responsible for one's having the principles of choice in the light of which one chose how to be
- For this to be so, one must have chosen P1 in a reasoned, conscious, intentional fashion
- But for this to be so one must already have had some principles of choice P2 in light of which one chose P1 and so on
- This is a regress we cannot stop and so true self-determination is impossible because it requires the actual completion of an infinite series of choices of principles of choice
- So true moral responsibility is impossible because it requires true self determination
- Most replies: valid but not central to the discussion of free will
 - But moral responsibility is essential to the free will debate
- Strawson: true moral responsibility is responsibility of the kind that, if we have it, then it makes sense, at least, to suppose that it could be just to punish some of us and reward others
 - Even if you believe that determinism is true, and that you will in 5 minutes be able to look back and say what you did was determined, this does not seem to undermine your sense of the absoluteness and inescapability of your freedom, and of your moral responsibility for your choice
 - Same for Basic Argument → remains true that as one stands there, one's freedom and true responsibility seems absolute and obvious to one
- Strawson: Large and small, morally significant or morally neutral situations of choice occur regularly in human life and lie at the heart of the experience of freedom and responsibility → source of our inability to give up belief in true or ultimate moral responsibility
 - Why human beings experience these situations of choice as they do
 - Must any cognitively sophisticated, rational self-conscious agents experience situations of choice in this way

- Can we be truly responsible for how we are?
 - We tend to believe that we are responsible for how we are (in some vague or unexamined fashion) and answerable for how we are
 - Sometimes a part of one's character may strike one as foreign → but it can only do so against a background of traits that are not foreign but identified with
 - There is a powerful tendency in ordinary thought to think that one can be truly morally responsible even if one's character is ultimately wholly non-self determined – because one is fully self-consciously aware of oneself as an agent facing choices
- Restated Basic Objection
 - You do what you do in any situation in which you find yourself because of the way you are; to be truly morally responsible for what you do, you must be truly responsible for the way you are, at least in certain crucial mental respects
 - The Basic Argument, if true, shows that there is a fundamental sense in which no punishment or reward is ever ultimately just → same as punishing people for the shape of their face or their skin colour
 - Contradicts a fundamental part of our natural self-conception and human thought moves deeply against it
- Strawson resists the second premise
 - Depends on how we define “true moral responsibility”
- Rejects the compatibilist position
 - Compatibilism: free and morally responsible even if determinism is true → one can be truly responsible just so long as one is not caused to act by any certain set of constraints (kleptomaniac impulses, obsessive neuroses, desires experienced as alien etc)
 - Objection: fails to amount to any true sort of moral responsibility given the natural, strong understanding of the notion of true moral responsibility → one does what one does because of the way one is, and one is in no way ultimately responsible for the way one is
 - Compatibilists say that the notion of “true” moral responsibility in the Basic argument cannot have application to anything real and the objection is not worth considering
- Rejects the libertarian position
 - Libertarianism: freedom and moral responsibility are incompatible with determinism and we are free and responsible agents and so determinism is false
 - Kane: agents in an undetermined world can have free will for they can “have the power to make choices for which they have ultimate responsibility”

- They can “have the power to make choices which can only and finally be explained in terms of their own wills”
 - Power is grounded in the possible occurrence, in agents, of efforts of will that (i) are partly indeterministic in their nature and hence outcome, (ii) occur in cases which agents are trying to make a difficult choice between the options that their characters dispose them to consider
- Objection: I am still shaped by my already existing character even if it is indeterministic → merely lucky by genetically determined predispositions for which we are not responsible
 - In the end, whatever we do, we do it either as a result of random influences for which we are not responsible, or as a result of non-random influences for which we are not responsible, or as a result of influences for which we are proximally responsible but not ultimately responsible
 - Ultimate responsibility for an outcome of an effort of will depends essentially on the partly indeterministic nature of the outcome
- Third view: one cannot be held ultimately responsible for one’s character or personality or motivational structure
 - We can be truly free/responsible even if we are not ultimately responsible → phenomenology of human choice
 - Intuition: one is free and truly morally responsible because one’s self is, in a crucial sense, independent of one’s character or personality or motivational structure (one’s CPM)
 - Suppose one is in a situation in which one experiences a difficult choice between A, doing one’s duty, and B, following one’s non-moral desires
 - Given one’s CPM, one responds in a certain way and one’s desires and beliefs develop and interact and constitute reasons for both A and B
 - But consider one’s self S which is imagined to be in some way independent of one’s CPM. S considers the deliverances of one’s CPM and decides in the light of them, but it – S – incorporates a power of decision that is independent of one’s CPM in such a way that one can after all count as truly and ultimately morally responsible in one’s decisions and actions, even though one is not ultimately responsible for one’s CPM
 - But S also relies on the way one is → it must be responsible for being the way it is but it cannot

Helen Stewart: Falsity of Determinism implies no free will

- H. Stewart: quantum indeterminacy reassures us that more than one path in the future is physically possible from the present state of the world at t_1 . But it does not show how we, as the agent, can have a role in determining which of those multiple futures come about. In fact, quantum physics says the exact opposite – the mechanism which determines which future comes about is stochastic in nature and thus out of human control
 - Suppose quantum indeterminacy shows that the impulses in my brain actually follow a random walk: if it moves left, my left hand moves; if it moves right, my right hand moves. Either left or right is possible. But realise that there is no place for the agent to have a proper role in making his left or right hand move
- To have free will is to understand how an agent, as a *person*, can have a role in bringing about a future
- Basically, Quantum indeterminacy only shows that there are multiple possible futures, but this is insufficient to show that an agent is free. They must also account for the role in which an agent plays in making a specific future come about → but often, free will is incompatible with indeterminism precisely because the process is stochastic and therefore cannot be up to the agent what the outcome is

Libertarianism

Ekstrom, Laura. 2005. "Libertarianism and Frankfurt-style Cases." In *The Oxford Handbook of Free Will*, 1st Edition, edited by Robert Kane, 309-322. Oxford: Oxford University Press.

Basic Position: No amount of psychological complexity is sufficient for free will and that libertarians do not need to show that causal determinism undercuts responsibility for reasons other than its negation of all alternative possibilities to choice and action

- Frankfurt-style cases
 - Ekstrom: Agnostic about the responsibility of the agent in the typical Frankfurt-style scenario because such scenarios leave unstated the reigning metaphysical conditions
 - If causal determinism is assumed to be true in the scenarios, then the counterfactual intervener is superfluous for agents in deterministic scenarios cannot do otherwise than act just as they do and could not ever have acted or decided otherwise
 - Mistake for the libertarian to grant that the agent in a Frankfurt-style scenario is responsible → must remain agnostic until the metaphysical presuppositions of the example are made explicit
 - Question begging for the compatibilist to assume that the agent is morally responsible under the assumption of determinism

- Possible reply: what is shown by (underspecified) Frankfurt-type cases is that “if Jones is not morally responsible for his choice and action, this is not simply because he lacks alternative possibilities”
 - Ekstrom rejects that the scenario itself is supposed to demonstrate this conclusion → the only way we can diagnose anything is if the case actually elicits the judgement that the agent is morally responsible
 - But once the suppressed context of causal determinism is illuminated, then we have to be agnostic → merely assuming moral responsibility
- Possibly reply: might assume causal determinism to be false in Frankfurt case examples and at some moment in each scenario, there is more than one physically possible future, and this fact may leave room for the agent’s having an ability to act or decide otherwise as he does
 - But then it is open to the libertarian to maintain that the agent in the Frankfurt-style case is morally responsible partially in virtue of the availability of the unchosen alternative
- Possible reply: suppose one constructs the Frankfurt-style scenario such that the agent can only begin to decide otherwise or such that a pathway consisting of certain neural events can begin but would be stopped before an alternative mental event could be completed. Then one may respond to this horn of the dilemma for Frankfurt-style cases, the one supporting the falsity of causal determinism, by arguing such “flickers” are too flimsy a base on which to ground moral responsibility
 - But one cannot legitimately claim to thereby uphold the argument from Frankfurt-style cases against PAP → only an insubstantial flicker, and so the agent is not clearly morally responsible and so the case cannot serve as a counterexample to the principle proposing a necessary condition of moral responsibility
- New Frankfurt-style case (indeterministic) so that the agent does have a significant ability to do otherwise prior to the inevitable act (Mele and Robb)
 - At t1, Black initiates a certain deterministic process P in Bob’s brain with the intention of thereby causing Bob to decide at t2 (an hour later, say) to steal Ann’s car. The process, which is screened off from Bob’s consciousness, will deterministically cumulate in Bob’s deciding at t2 to steal Ann’s car unless he decides on his own at t2 to steal it or is incapable at t2 of making a decision...As it happens, at t2 Bob decides on his own to steal the car, on the basis of his own indeterministic deliberation about whether to steal it and his decision has no deterministic cause. But if he had not just decided on his own to steal it, P would have deterministically issued, at t2, in his deciding to steal it. Rest assured that P in no way influenced the indeterministic decision-making process that actually issues in Bob’s decision

- Bob's indeterministic deliberative process is called "process x" and an indeterministic process is a sequence of events, some of which are connected by indeterministic causal relations
 - If there is an indeterministic causal relation between event A and event C, then given A, C might not occur, even in the absence of anything to frustrate A.
- Ekstrom: reasonable to conclude that Bob acts freely in stealing Ann's car and that he is morally responsible for stealing it (provided that he meets any other conditions for moral responsibility)
 - This is because we stipulate that Bob could have formed a different preference instead, given the prior occurrence of a particular consideration or set of considerations
 - Free action is action on authorised preference i.e. uncoerced causally indeterministic outcome of considerations that occurred to the agent during his deliberative process
 - Explicitly involves robust alternative possibilities but does not show that responsibility is consistent with a complete lack of alternative possibilities → libertarian is untroubled
- Indeterministically specified Frankfurt-style scenarios show that PAP is false because it is narrowly construed
- Alternatives to PAP
 - Mele and Robb: S is morally responsible for what he did at t only if (1) he could have done otherwise at t or (2) even though he could not have done otherwise at t, the psychological character on the basis of which he acted at t is itself partially a product of an earlier action (or actions) of his performed at a time when he could've done otherwise
 - Best fits Ekstrom's analysis
 - Disjunctive Principle Concerning Alternative Possibilities: A person S is morally responsible for doing X at t only if either S could have done at t otherwise than X or S could have at some time done something other than what s/he did, something that would be reasonably expected to have the result that S would do otherwise than X at t
 - Suppose Catherine deliberately flashed a police officer one hour prior, she is still responsible for missing a wedding even though she could not have otherwise attended it at t, because she could have done otherwise when flashing the police officer
 - The semi-compatibilist must show that all such PAP-esque principles concerning alternative possibilities must be false (if moral responsibility were consistent with causal determinism)
- Global Frankfurt cases and the Libertarian's Burden

- We can imagine a counterfactual intervener at every decision point → would falsify Mele and Robb's principle too
- We imagine that causal determinism is precisely like such global Frankfurt cases, where at every point of even preference formation, there is a counterfactual intervener that ensures Bob forms a certain set of preferences
- Ekstrom: do our intuitions about the freedom/responsibility of our actions still hold when we expose the deterministic sequence leading to an act?
 - Suppose you deliberately decide to flick your right foot and knock a wine glass on the coffee table → our intuitions arise from clinging to the belief in alternative possibilities but if we hold vividly in our minds the truth of causal determinism in this scenario, and that there were no forking paths, we might be inclined to say we are not blameworthy
- Ekstrom admits our intuitions might simply just be unclear, but that the libertarian's burden is not to show that causal determinism undermines responsibility for reasons other than negation of alternative possibilities
- The intuition is that it is unfair/inappropriate to blame a person for acting from, or in expression of, a self that could not have been different from what it is. If determinism is true, then one's character is exactly what it is of physical necessity, and the entire course of one's life proscribes a single path along which the past pushes one
 - A fundamental libertarian intuition is that we need alternative possibilities in the construction of the self, and so that there is some chance in who we are and some openness in who we become

Ekstrom, Laura. 2003. "Free will, Chance and Mystery" *Philosophical Studies: An international Journal for Philosophy in the Analytic Tradition*, pp 153-180

Summary: Reconciliation between libertarian freedom and causal indeterminism without using agent-causation as a primitive notion i.e. reject that undetermined acts are too chancy to be free

- Van Inwagen: free will remains a mystery, and that undetermined acts are too chancy to be free
 - Ekstrom: three senses of the term 'chance' and no single construal of the term on which all the premises of van Inwagen's argument for free-will causal indeterminism incompatibilism are true
- Van Inwagen's Free Will Mysterianism
 - Powerful, unanswered case for the impossibility of free will and yet free will undeniably does exist
 - Impossibility of free will
 - Free will is incompatible with causal determinism (Ekstrom agrees with this)
 - Free will is incompatible with causal indeterminism

- Argument for incompatibility with causal indeterminism
 - Van Inwagen: if indeterminism is to be relevant to the question whether a given agent has free will, it must be because the acts of that agent cannot be free unless they (or perhaps their immediate causal antecedents) are undetermined. But if an agent's acts [or their immediate causal antecedents] are undetermined, then how the agent acts on a given occasion is a matter of chance. And if how an agent acts is a matter of chance, the agent can hardly be said to have free will
 - First premise is correct, but the second premise depends on what we mean by a matter of chance
- Ekstrom's Reply: argues that the case for the impossibility of free will can be answered because free will is compatible with causal determinism
- Ekstrom's Indeterminist Theory of Free will: an act is free iff it results by a normal causal process from a preference for the act, a preference that has undefeated authorisation
 - An agent's preference has undefeated authorisation just in case the agent is not coerced as she forms the preference, and the preference is caused but not determined by her considerations (the inputs to her deliberative process)
 - These considerations might themselves have chancy causes or deterministic ones → indeterministic generations of the considerations is not required but allowed
 - The key location for the indeterminism for a libertarian is within the free agent's decision process, not in the generation of considerations
 - A decision might terminate in one way or might terminate in at least another
 - Intuition is that the resulting decision output, the preference, when so caused and uncoercively formed, is authored by the agent since it is formed by her for reasons that justify and explain it; and its claim to being authentic is not defeated by the objection that she formed it because she had to, because it was causally necessitated by the past and the natural laws. The preference, that is, has undefeated authorisation
 - Preference is a desire (i) either for a certain cause of action or for a certain desire to be effective in leading one to act when and if one acts, and (ii) that has been evaluatively formed with regard to the agent's conception of the good
 - Objection: preferences happen to us, as do beliefs; they are attitudes with respect to which we are passive
 - Ekstrom: preferences must be actively formed, through evaluative deliberation

- Link to alternative possibilities: the important alternative possibilities relevant to free will are alternative possibilities for the outcome of decision over what to prefer
 - The required indeterminism is between the considerations that enter into the agent's deliberations over what to prefer and her decisively formed preference itself
- Why her theory is better over other indeterministic theories
 - Rejecting accounts of free action requiring indeterminism only either between the agent's intention and his act or between the agent's preference and his corresponding intention is not that such accounts make free actions accidental, but rather that such theories count as free, actions that are not free
 - Consider actions following intentions that themselves have been causally determined to occur by events of the past thousand years. If the past, given natural laws, inevitably leads to Colonel Mustard's intention to murder Miss Scarlett at a particular moment, then even if there is some indeterminism between this intention and the subsequent murder, it seems intuitively that the murder is not performed freely because Colonel Mustard could not have done other than try to murder Miss Scarlett
 - Against indeterminism between settled preference and corresponding intention to act: Suppose that the past and natural laws necessitate the colonel's formation of a preference to murder then and there, such that he had to prefer that he act on the desire to murder his victim. What seems troubling here for one concerned with free agency is that the past "rigs" his character and the colonel's self is deterministically formed by circumstances and environment, rather than his having a chance to make up his mind to be the sort of person who has other than murderous preferences
 - Our ideal of agency is committed to there being a firm metaphysical relationship between who we are and what we do, yet to there being some leeway or openness in who we are
 - What we want when focusing on freedom is to be able to decide on our character-defining attitudes on our own i.e. preferences up to us in the sense that they follow our deliberations and are caused and justified by our reasons
 - Kant: self-forming actions, mental acts of will that sort out a person's ends or purposes
 - Kane's view: we are in inner conflict, torn between competing visions of the efforts of will (sustain our purposes and to reject temptation, to act morally and not act from self interest etc)

- The agent is trying to produce one particular decision outcome and at the same time trying to produce a different decision outcome
 - On this account, chance is wrongly/loosely construed: the chance of the agent's choosing otherwise than as he is trying to choose i.e. the indeterminacy is the decision process, is generated by the agent's own simultaneous effort of choosing in that other way, and hence the agent is not hindered by chance or affected by chance from the outside
- Ekstrom's reply: Kane's view is phenomenologically inaccurate and theoretically unsatisfying to propose that what one is trying to do is to make up one's mind in one particular way and make up one's mind in a different way simultaneously
 - Her view is that deliberation is to make up one's mind and try to settle uncertainty → no need to be internally at war like Kane's view
- Ekstrom's reply to the mysterianism argument
 - Chance as a kind of force that is an unaccountable determiner of events
 - Ekstrom rejects such a notion of chance and finds it implausible (and also not what Inwagen thinks)
 - Chance as probability: no probability equal to one for an event's occurrence even given prior events and natural laws → degree of likelihood of a particular outcome
 - Suppose Alice can either lie or tell the truth with a ratio of about 50/50 → if we have watched 700 replays, and we wonder what to expect on the 701th, some might say that it is reasonable to believe that what happens will be simply due to chance (van Inwagen)
 - This makes the second premise (that if the causal antecedents were undetermined, how an agent acts is a matter of chance)
 - Suppose that John is uncoerced as he deliberates, that his total collection of considerations leaves undetermined what preferences he will form concerning re-enlistment, and that, in fact, the preference to re-enlist rather than to retire is the one formed. John's considerations were probabilistic causes of the outcome of his deliberation over what to do; and now suppose that John's preference to reenlist causally determines the corresponding intention, which causally determines his act of reenlisting. Then on the proposed model of free action, John enlists freely
 - Third premise is also false: not true that if an agent's action has less than probability 1, he cannot be said to freely act → free will is the ability to choose and act freely as is required

- To claim that it follows from our acts being probabilistic that we cannot have free will is simply to dogmatically endorse compatibilism
 - Probabilistic sense of chance is harmless: Any act covered by law that might not have occurred in the circumstances, holding fixed the natural laws and events of the past, had a probability for its occurrence less than one → does not make our decisions random in the sense of being purposeless
 - If determinism is false, an agent can act purposely, intentionally, in a way that is guided by her preferences without being pushed by the past and the natural laws into preferring just what she does
- Chance as an event not serving any purpose or one not a part of anyone's plan
 - State of affairs or an event is a matter of chance if it is something that happens unpredictably, without intention or purpose (or without observable cause)
 - Suppose there is a miscarriage: it is a chance event as no one wanted the embryo to attach to an inhospitable location or planned for the event or did anything in an attempt to ensure that it occurred
 - Grants third premise since the way an agent acts is accidental if purposeless
 - Second premise is false: does not follow from that fact that an event has indeterminate causation that the event is uncaused or unplanned (and so is not chancy) → an agent's act being undetermined does not imply that how the agent acts on a given occasion is a matter of chance in the purposeless sense
 - An action being uncontrolled does not follow from the mere presence of indeterministic causation in the history of that event
- Control and Value: if there is some indeterminacy in our deliberations, then can we be in control of what we decide to do?
 - Compatibilist vs indeterministic accounts
 - Clarke: the actual choice is made with the variety of agent-control characterised by the appealing compatibilist account, and there will have been a chance of the agent's making an alternative choice still with the same variety of control. But the [indeterminist] account provides the agent with no positive power to determine which of the open choices he makes, except that whichever choice is makes, he acts with the compatibilist variety of control. The chance that we have introduced by the requirement of indeterminism, then, does not result in the increase in the agent's control

- The objection is that while it is not true, contra van Inwagen and other luck objectors, that indeterministic accounts give free agents less control than do similar compatibilist accounts, it is true that they grant the agent with no greater control over his actions
- Ekstrom thinks that we should favour indeterministic accounts because they allow for the availability of alternative possibilities

Chisholm's Agent Causation

- Free will is in tension both with determinism and simple indeterminism (what we do is by accident)
- Distinguishes agent-causation from event-causation:
 - Causation by the agent: Suppose that there must be some event A, presumably some cerebral event, which is caused not by any other event, but by the agent. Since A was not caused by any other event, then the agent himself cannot be said to have undergone any change or produced any other event which brought A about
 - But if, when the agent made A happen, there was no event involved other than A itself, no event which could be described as making A happen, what did the agent's causation consist of? What is the difference between A's just happening and the agent's causing A to happen → cannot attribute the difference to any event that took place within the agent
 - But Chisholm rejects that A is merely the effect as it flows from the agent → the difference between the man's causing A vs the event A just happening is that the event A was in fact caused and was caused by the man → there was a brain event A; the agent did, in fact, cause the brain event but there was nothing that he did to cause it
 - We are prime movers unmoved
 - Objection: if our actions, or those for which we are responsible, are not causally determined (by events), then they are not causally determined by our desires → then the relation between what we want or what we desire, on the one hand, and what it is we do becomes more complicated
 - Hobbist approach: if we know the totality of a man's beliefs, desires, state of his body etc we may deduce just what he would do
- Kantian approach (Chisholm's): no logical connection between wanting and doing (or even a logical connection or a causal connection)
 - Reid: although we may "reason from men's motives to their actions and, in many cases, with great probability" we can never do so with "absolute certainty"

- Consistent with saying our desires do exist under conditions such that those conditions necessitate us to act but at other times say that our desires “incline [us] without necessitating”
- Incline without necessitating
 - Two propositions: (1) He can resist the temptation to do something in order to make A happen; (2) He can resist the temptation to allow A to happen (i.e. to do nothing to prevent A from happening)
 - We may suppose that the man has some desire to have A happen and thus a motive for making A happen. His motive for making A happen, Chisholm suggests, is one that necessitates provided that, because of the motive, (1) is false; he cannot resist the temptation to do something in order to make A happen. His motive for making A happen is one that inclines provided that, because of the motive (2) is false i.e. he cannot bring himself to do anything to prevent A from happening. And so we can say that his motive for making A happen is one that inclines but does not necessitate provided that, because of the motive (1) is true and (2) is false
 - He can resist the temptation to make it happen but cannot resist the temptation to allow it to happen

Part III: Compatibilism

Hume's Actual-Sequence Compatibilism

Actual-Sequence Compatibilism: we have to look at the actual history of the action to determine if it was done freely by X → if F was done as a result of X's desires, then it was free; if F was done as a result of coercive forces, then it was not free

- Hume seems to endorse this stance where he argues that an action is free iff it was done as a result of the “determinations of the will” → essentially, Hume thinks of freedom as the “absence of constraints”: to be free is to (i) have the power or ability to do what we want or desire to do, which in turn entails (ii) an absence of constraints or impediments
 - While he follows by saying “If we want to rest, we may rest; if we do not want to rest, we may not” which seems to endorse a doctrine of being able to do otherwise, I suspect Hume's focus consists more on the causal link between our intentions and motives and our actions which he takes to be the effects of our intentions and motives
 - Hume is trying to argue that while the Doctrine of Necessity holds for our actions, because they are caused by such intentions and motives (since we often see the same action from the same motives), this does not eliminate the Doctrine of Liberty
 - It is only when intentions and motives cause our actions that we can consider such actions free; if they were caused by external obstacles or coercive forces, then we are not free. Intuitively this is because our

motives and intentions, especially in light of the scientific context in which Hume was situated, were seen as *ours*, while external obstacles and coercive forces were exogenous to us

- Problem with Actual-Sequence Compatibilism
 - The drug addict: A drug addict does what she wants when she takes drugs. But intuitively she does not act freely
 - This is because her desire is not within her control
 - If we revise it to the higher-order desire view, we consider the willing drug addict: The willing drug addict, who is compelled to take drugs but is perfectly happy with the situation, does what she wants to do, but we still does not want to say that she acts freely
 - Because she cannot do otherwise if she wanted to
 - We would think that the non-addict is free, but the addict is not: The problem is how do we distinguish between the addict and the non-addict without appealing to the fact that the addict couldn't have done otherwise
 - If actual-sequence compatibilism appeals to this fact (and Hume's view is perfectly compatible with it by saying the absence of constraints imply that I have the power to avoid doing F if I so chose to do so), then it collapses back into Ayer's conditional view, proven false by Frankfurt cases

Wolf's Asymmetric Freedom

Wolf's notion of an agent being morally responsible and free if and only if their actions are determined by their interests, and their interests are determined by the right sorts of reasons (namely, the True and the Good)

- Argues that in cases where we give moral praise, our criterion for one's moral praise is not that they could have done otherwise and thus chose to do the good action, but it is because their actions were determined by the right sort of (moral) reasons → having the right set of reasons should surely not lessen the credit one deserves
 - For instance, consider the statement "He is so gentle he could not hurt a fly" → this is taken to be a moral praise despite the fact that it seems to entail that he could not have done otherwise due to his gentleness (he remains psychologically determined); the reason is that he was psychologically determined by a moral reason (gentleness)
 - If a friend helps you and says "I couldn't resist" → testament to one's friendship than a detraction from their moral goodness
- Development of the rational view of free will: We might start with a man who has a generous mother and starts to develop his generosity out of a desire for her love. But this need not be the reason for his retainment of his generosity as he grows to be more mature. He might notice that his generous acts provide an independent

pleasure, connected to the pleasure he gives the person on whom his generosity is bestowed + bestows positive feelings etc. He appreciates being the object of generous acts and is hurt when on the extreme end of ungenerous acts. So, generosity seems to cohere with his other values and with his ideal of how he ought to live

- His generosity is completely determined by causes external to him: his mother, his being the object of generous acts, the independent pleasure forming when he is generous → he decides none of these things
- But it is absurd to say that the man is not free or is not responsible for his being generous → his character is determined on the basis of his reasons which are determined by what reasons there are
 - What is not under control is that generosity is a virtue, and it only because he realises this that he remains a generous man
 - But we cannot claim that just because generosity being a virtue is out of his control that he has no responsibility for being generous → in fact it is the best reason one could have for being generous
- Asymmetry between moral blame and moral praise
 - For an action is morally praiseworthy only if there are no good and sufficient reasons to do something else; so, when an agent performs a good action, the condition of freedom is a counterfactual: **though it is required that the agent would have been able to do otherwise had there been good and sufficient reason to do so, the situation in which the good-acting agent actually found himself is a situation in which there was no such reason**
 - Thus, it is compatible with the satisfaction of the condition of freedom that the agent in this case could not actually have done other than what he actually did
 - When an agent performs a bad action the condition of freedom is not a counterfactual: the bad-acting agent does what he does in the face of good and sufficient reasons to do otherwise. Thus the condition of freedom **requires that the agent in this case could have done otherwise in just the situation he was actually placed**
 - An agent can be determined to perform a good action and still be morally praiseworthy, but if an agent is to be blameworthy, he must unconditionally have been able to do something else
- Realises that if we look at an undetermined agent (in the sense that satisfies the condition of freedom), and that the agent's actions are not determined by interests which are determined by reasons, it seems that the agent's actions are so undetermined such that the agent is free from moral reasons
 - So, if an agent is truly free in satisfying the condition of being undetermined, the agent could not be ascribed moral praise/responsibility

- When we think about who morality applies to, we realise that the compatibilists may be right: that an agent can only be moral insofar as his actions are psychologically determined (by a specific set of moral reasons)
- Victim of a Deprived Childhood: Say a victim of a deprived childhood commits a crime but is not coerced or overcome by an irresistible impulse. He is complete possession of normal adult faculties of reason and observation and seems to have as much control over his behaviour as we have of ours
 - Acts of the basis of choice, and he chooses on the basis of his reasons
 - But it is not in virtue of his actions being determined that he is not responsible → sharpens into focus when we look at cases for moral praise
- The relevant difference between the victim of a deprived childhood and us is that our childhoods fell within a range of normal decency while his was severely deprived
 - The consequence is that unlike us, he could not have had reasons even though there were reasons around due to selective data of being abused
 - So, he is not morally blamed precisely because he could not access the good reasons for doing something
- Wolf's thesis of freedom: Freedom necessary for moral responsibility is the freedom to be determined by moral reasons (what Wolf terms the "True and the Good")
 - Depends on our capacities for finding them → which is what the deprived childhood prevents them from doing so
 - So if a normal person does a crime in the face of good and sufficient reasons to do otherwise → we would blame him despite his actions being determined by reasons
 - This is because despite his capacity for being able to locate moral reasons, he still did what he did in the face of it
 - So, blameworthiness in effect requires him to have done otherwise

Strawson's Responsibility Thesis

- Key Issue: want to justly ascribe moral responsibility but we assume that this implies moral responsibility which implies freedom and freedom implies the falsity of determinism
 - We tend to say that a man who is the subject of justified punishment or moral condemnation must really deserve it, and at least in the case where he is blamed for a positive action rather than an omission, the condition of his really deserving blame is something that goes beyond the negative freedoms of constraints and coercion that we all agree precludes responsibility; rather, it is a genuinely free identification of the will with the act and this is the condition that is incompatible with determinism
- Reactive Attitudes of Persons: we attach a great importance to the attitudes and intentions towards us of other human beings and the great extent to which our

personal feelings and reactions depend upon, or involve, our beliefs about these attitudes and intentions

- I reasonably feel a gratitude towards someone who intended to benefit me, one that I should not feel at all if the benefit was an incidental consequence, unintended or even regretted by him
- If someone hits me unintentionally that is no less painful than if he hit me maliciously, I shall not feel a kind and degree of resentment than I feel in the latter case
- To ask for forgiveness is in part to acknowledge that the attitude displayed in our actions was such as might properly be resented and in part to repudiate that attitude for the future
- Strawson argues that it is worth considering what sorts of cases or special considerations in which such reactive attitudes are tempered
 - Case 1: pleas such as “It was the only way”, “He had to do it”, “They left him no alternative” or “He had not realised” do not invite us to suspend towards the agent our ordinary reactive attitudes; they do not invite us to see the agent as other than a fully responsible agent but rather the injury as one for which he was not fully, or at all, responsible
 - They do not suggest that the agent is in any way an inappropriate object of that kind of demand for goodwill or regard which is reflected in our ordinary reactive attitudes and suggest instead that the fact of injury was not in this case incompatible with that demand’s being fulfilled, that the fact of injury was quite consistent with the agent’s attitudes and intentions being just what we demand they should be
 - That the agent was ignorant of the injury he was causing, or had lost his balance or had reluctantly caused injury which acceptably override his reluctance is in no way opposed to, or outside the context of, ordinary inter-personal relationships and the manifestation of ordinary reactive attitudes
 - Since things go wrong and situations are complicated, it is an essential and integral element in the transactions which are the life of these relationships
 - Case 1 provides a group of considerations that should inhibit resentment in particular cases of an agent causing injury without inhibiting reactive attitudes in general towards that agent
 - Case 2: pleas such as “He wasn’t himself”, “He has been under very great strain recently”, “He was acting under post-hypnotic suggestion” and “He was only a child/hopeless schizophrenic” invite us to suspend our ordinary reactive attitudes towards the agent

- They invite us to view the agent himself in a different light from the light in which we should normally view one who has acted as he has acted
 - We shall not feel resentment against the man he is for the action done by the man he is not (or at least feel less)
- Strawson's conclusion: the second set of cases presents the agent as morally undeveloped i.e. such as being a child, neurotic or deranged
 - Our reactive attitudes tend to be profoundly modified under such circumstances
- Relationship between determinism and reactive attitudes: should the determinist thesis make us look upon everyone as morally undeveloped or abnormal?
 - Strawson argues that to do so is practically inconceivable: the human commitment to ordinary inter-personal relationships is too thoroughgoing and deeply rooted for us to take seriously the thought that a general theoretical conviction might so change our world that, in it, there were no longer any such things as inter-personal relationships as we normally understand them; and being involved in inter-personal relationships as we normally understand them precisely is being exposed to the range of reactive attitudes and feelings that is in question
 - Even if determinism were true, a sustained objectivity of interpersonal attitude and human isolation that would entail does not seem something of which humans would be capable
 - Where determinism comes into force is when we view the agent as incapacitated in some or all respects for ordinary interpersonal relationships: hence, there is one sense of "determined" (i.e. incapacitated) such that (1) if determinism is true, all behaviour is determined in this sense and (2) determinism might be true, i.e. not inconsistent with the facts as we know them to suppose that all behaviour might be determined in this sense, and (3) our adoption of the objective attitude towards the abnormal is the result of a prior embracing of the belief that the behaviour or the relevant stretch of behaviour, of the human being in question is determined in this sense
 - We do not adopt an objective attitude for the case of abnormality or normal cases because we hold on to such a belief
- Strawson's summarised response
 - We cannot seriously envisage ourselves adopting a thoroughgoing objectivity of attitude to others as a result of theoretical conviction of the truth of determinism
 - When we adopt an objective attitude in a particular case, our doing so is not the consequence of a theoretical conviction which might be expressed as "Determinism in this case", but is a consequence of our abandoning, for different reasons in different cases, the ordinary interpersonal attitudes

- One objection: Strawson only talks about what we would do if determinism gained acceptance, not what we should or what is rationally acceptable to do

Fisher's Responsibility and Control

Motivation I: Strawsonian View

- Someone is morally responsible insofar as he is an appropriate candidate (or apt) for the reactive attitudes
 - Someone is a morally responsible agent insofar as he is an appropriate candidate for at least some of the reactive attitudes on the basis of at least some of his behaviour
- Why: Imagine that scientists infrequently manipulated your friend but on the occasion of his failure to pick you up at the airport, the manipulation occurred. Although you might still have many of the relevant attitudes towards your friend (on the basis of other behaviour), it would nevertheless be inappropriate to be indignant at him for his failure to pick him up
 - Charitable work as a result of manipulation: not fitting to praise
- Strawson: Great importance we attach to our attitudes and intentions towards us of other human beings, and the great extent to which our personal feelings and reactions depend upon, or involve, our beliefs about these attitudes and intentions
 - Regarding someone as a responsible agent means that we react to the person with a unique set of feelings and attitudes i.e. gratitude, resentment, love etc
 - Constitute our human relationships
- Reactive responses result from our distinctive engagement with persons
 - In contrast, we take a more detached and uninvolved (objective) perspective with non-persons
 - When conducting an experiment on the rat, it is appropriate to be frustrated when the rat does not follow instructions, but it is out of place to feel indignant at the rat or to resent the rat for its behaviour → we do not have the same kind of reactive attitudes towards nonpersons

Motivation II: Frankfurt Case and actual sequence

- Frankfurt-Type Cases: Assassin that has a chip which would have forced him to kill the child if he had refused
 - Responsibility Undermining Device operates only in the alternative sequence → if it does not operate in the actual sequence, we can ascribe moral responsibility
- Freedom and moral responsibility does not require the sort of control that involves the existence of genuinely open alternative possibilities
 - We need a notion of control that involves actual sequence
- Paradigmatic cases where one ceases to be morally responsible: indoctrination, brainwashing, under the influence of drugs

- In Frankfurt-type cases, the agent could not have done otherwise and hence the agent is not reasons-responsive
 - But it is crucial to see the **kind of mechanism that actually operates is reasons-responsive**, even though the kind of mechanism that would operate in the alternative scenario is not reasons responsive
 - Mechanism-centred actual sequence account rather than agent-centred account
 - E.g. the assassin's action issues from the normal faculty of practical reasoning, which we can reasonably take to be reasons responsive; in the alternative scenario, a different kind of mechanism would have operated (the chip) which is not reasons responsive
- The operative mechanism in the actual sequence is often the agent's own whereas the mechanism that would have operated is not
 - Practical reason vs the chip

Motivation III: Wolf's Asymmetry Thesis and Reason based views

- Central Difference: Fischer advocates for a "mechanism-based" rather than "agent-based" view that Wolf endorses
- Wolf: freedom necessary for responsibility consists in the ability (or freedom) to do the right thing for the right reasons...to choose and to act in accordance with the True and the Good
 - Asymmetry Thesis: one cannot be morally responsible for a bad action that one could not have avoided, but one can be morally responsible for a good action that one could not have avoided
 - Asymmetrical requirements: to be morally responsible for bad actions one must be able to do otherwise, but this ability is not required, in order to be responsible for good actions
 - Wolf motivates the Asymmetry Thesis by appeals to intuitions over judgements about bad and good actions
 - E.g. A woman standing on an uncrowded beach sees a young boy struggling in the surf and thinks "the child needs my help" and swims to his rescue → literally impossible to refrain from saving the child "because her understanding of the situation is so good and her moral commitment so strong" and so leaving the boy to drown is unthinkable → the woman is still responsible and praiseworthy
 - E.g. kleptomania, drug addiction and deprived childhoods → not responsible because they cannot do the right thing for the right reasons
- Fischer's Criticism
 - Basically a Frankfurt case in which there is a counterfactual intervener to make you do a bad action, but you are still morally responsible even though you are not responsive to the True and the Good

- What is relevant is the kind of mechanism that operates in the actual sequence (unimpaired practical reasoning) and the mechanism that operates in the alternative sequence (i.e. direct manipulation through a device)
 - We can be morally responsible in the actual sequence but not the alternative sequence
 - When a responsibility-undermining mechanism operates only in the alternative sequence and plays no role in the actual sequence, an agent may be responsible for his bad actions even if unfree to do otherwise
- Asymmetry Thesis is only prima facie attractive because Wolf's examples for good actions have no responsibility-undermining mechanism operating in the actual sequence but they do for the cases of bad actions

Preliminaries: Regulative and Guidance Control, modality

Aristotelian Conditions for Responsibility

- Constraints that give structure to any plausible specification of the conditions of the application of moral responsibility → two ways in which an agent definitely fails to be morally responsible
- Ignorance: lack the particular knowledge requisite for being responsible
 - Aristotle: in order to be praiseworthy, or blameworthy, a person must know (or be reasonably expected to know) what he is doing
 - E.g. person who backs his car out of his garage, unaware that a tiny kitten is snoozing behind the rear tire → odd to judge the driver is morally responsible
 - Must not be deceived or ignorant (as a result of certain processes)
 - Epistemic condition: the agent is responsible only if he both knows the particular facts surrounding his action, and acts with the proper sort of beliefs and intentions
- Force: forced actions of which the agent has no control over
 - Freedom-relevant/control condition: the agent must not behave as he does as the result of undue force
 - The agent must control his behaviour in a suitable sense → fundamental focus
 - Second condition might be more general

Challenges from Determinism

- Causal Determinism: the thesis that, for any given time, a complete statement of the facts about that time, together with a complete statement of the laws of nature, entails every truth to what happens after that time
 - Causal determinism obtains in a possible world w just in case any possible world which shares a time slice with w and has the same natural laws as w is identical with w

- Main goal of compatibilism: while there are some empirical discoveries (like kleptomania) relevant to our ascribing of moral responsibility, the sort of discovery represented by causal determinism should not in itself issue in our changing our very basic and fundamental view of ourselves as morally responsible agents
 - We have a very strong tendency to resist the conclusion that we should give up our current conception of ourselves as persons even if it were announced that causal determinism is true
 - Our sense of ourselves and other human beings as persons and subject to the reactive attitudes is a very basic and important feature of our lives → without this, lives would be radically different
- Direct vs Indirect Challenges
 - Indirect Challenge: Determinism rules out control and thus rules out responsibility
 - Direct: Determinism rules out responsibility without invoking control (and does not do so in virtue of ruling out control)
- Modal Indirect Challenge:
 - When a proposition p obtains and a person S does not have it in his power so to act that p would not obtain, p is “power necessary” relative to S
 - Denoted: $N_{\{S,T\}}(p)$ i.e. it is power necessary for S at T that p – p obtains and S is not free at T to perform any action such that if S were to perform it, p would not obtain
 - Person does not have control over whether a proposition obtains
 - Principle of Transfer of Powerlessness: basically a closure principle over N
 - If $N_{\{S,T\}}(p)$ and $N_{\{S,T\}}(\text{If } p \text{ then } q)$, then $N_{\{S,T\}}(q)$
 - If a person is powerless over one thing and over that thing's leading to another, then the power is powerless over the second thing
 - Plausible principle: if lightning hits my house today and I have no control over this and there is nothing I can do to prevent my house from catching fire if hit by lightning, then there is nothing I can do to prevent my house from catching fire
 - The Principle of Transfer of Powerlessness + the fact that the past is fixed and the natural laws are outside of our control
 - No person can act in such a way that some fact about the past would not have been a fact
 - Idea of Control: human beings tend to think of the future as branching, treelike structure with many nodes at which there are various paths into the future
 - When we take one path rather than another, we say that we have a certain kind of control over our behaviour
 - The Principle of the Transfer of Powerlessness rules out this tree-branching notion that there are alternative possibilities

- Overall argument: given that causal determinism obtains, there is some statement of the condition of the world at T1, b, which together with the laws of nature entails that S does A at T3
 - Since nobody has control over the past: $N_{\{S,T2\}}(b \text{ at } T1)$
 - And since nobody has control over the laws of nature, $N_{\{S,T2\}}(\text{if } b \text{ at } T1, \text{ then } S \text{ does } A \text{ at } T3)$
 - From the Transfer Principle, $N_{\{S,T2\}}(S \text{ does } A \text{ at } T3)$
- Indirect challenge II (without principle of transfer)
 - Principle of Fixity of the Past and the Laws: an agent has it within his power to do A only if his doing A can be an extension of the actual past, holding the natural laws fixed
 - The state of the world at T1 together with the natural laws entails that S does A at T3 → in all possible worlds in which the state of the world obtains at T1 conjoined with the actual natural laws, S does A at T3
 - S's refraining from doing A at T3 cannot be an extension of the actual past
 - Van Inwagen: constraint that the agent has access must be continuations of the path segment along which he has already walked
 - This is only one such continuation by Causal Determinism
- Direct Challenge: basically principle of transfer of powerlessness stated in terms of moral responsibility
 - If causal determinism is true, then there is some state of the world in the distant past b that is connected by the laws of nature to a particular action A that one performs in the present. But since no one is morally responsible for the laws of nature that lead from b and no one is morally responsible for the state of the world b in the distant past, it follows that no one is morally responsible for any action A

Regulative and Guidance Control

- Guidance Control involves an agent freely performing that action
- Regulative Control involves a dual power: the power freely to do some act A and the power to do something else instead (which might be simply refraining)
 - Requires the agent to exercise guidance control in both the actual and alternative sequence
- Motivating Case: Sally is driving her car and had the intention to make the right turn. As a result of her intention and because the car works well, she turns the steering wheel and carefully guides the car to the right. Here, she has guidance control. If Sally had the intention instead to turn the car to the left, and the car turns to the left, then she also has regulative control over the car's movement

- The upshot of this is that in Frankfurt cases, we do not have regulative but only guidance control, and so the sort of control necessary for moral responsibility is guidance control
 - Guidance control, not regulative control, grounds moral responsibility
- Guidance Control (Mechanism based): an agent exhibits guidance control of an action insofar as the mechanism that actually issues in the action is his own, reasons-responsive mechanism
 - Limitation: no principled way to distinguish between the kind of mechanism that operates in the actual sequence and the kind of mechanism that operates in the alternative sequence(s) → based on intuitions
- Even if considering actual sequence mechanisms, this may involve dispositional or modal properties i.e. referring to other possible worlds for analysis
 - It is important to see that, whereas other possible worlds relevant to ascertaining whether there is some actually operative dispositional feature (such as weak reasons-responsiveness), such worlds are not relevant in virtue of bearing on the question of whether some alternative sequence is genuinely accessible to the agent
 - In other words, most alternative sequences under consideration are not genuinely accessible to the agent because of the chip in the Frankfurt case

Target I: Strong Reasons Responsiveness

- SRR: Suppose that a certain kind K mechanism actually issues in an action. If K were to operate and there were sufficient reason to do otherwise, the agent would recognise the sufficient reason to do otherwise and thus choose to do otherwise and do otherwise
 - Notice that this filters out the alternative sequence mechanism → we do not need to consider it in the “alternative sequence” failures of the actual sequence mechanism because we are looking at how the actual sequence mechanism responds to reasons, not the agent
 - More precisely, we are looking how the agent, acting only on the actual sequence mechanism, would respond to reasons
- Three sorts of “alternative sequence” failures
 - Failures in connection between what reasons are and what reasons the agent recognises → failure to be receptive to reasons
 - Usually associated with delusional psychosis
 - Failure in the connection between the agent’s reasons and his choice → failure of reactivity
 - Failure to be appropriately affected by beliefs
 - Does not choose in accordance with this recognition
 - May result from weakness of the will
 - Failure in the connection between choice and action

- Physical incapacities or weakness of the will
- Not necessary for guidance control: weak-willed counterexample
 - E.g. As a result of unimpaired operation of practical reasoning, Jennifer decides to go (and goes) to the basketball game tonight and has sufficient reason to do so. But suppose that she would have been “weak-willed” had there been sufficient reason not to go i.e. she has a strict deadline for an important manuscript and she nevertheless would have chosen to go to the game, even though she would have recognised that she had sufficient reason to stay home and work. It seems that she could be held morally responsible for going and yet the actual-sequence mechanism which results in her action is not reasons-responsive in the strong sense
 - Failure of reasons-responsiveness stems from disposition towards weakness of the will
 - True as well for commendable and blameworthy acts → would be morally praised and blamed

Target II: Weak Reasons Responsiveness

- WRR: Suppose that a certain kind K mechanism actually issues in an action. If K were to operate and there were sufficient reason to do otherwise, there is some possible world in which the agent would recognise the sufficient reason to do otherwise and thus choose to do otherwise and do otherwise
- How it is better than SRR: Seems necessary for moral responsibility
 - Consider Jennifer and her decision to go to the basketball game. Even though in the closest possible world in which Jennifer has a weakness of will and would have gone even after recognising sufficient reason not to go, there exists some scenario in which the actual mechanism operates, and she has sufficient reason not to go to the game, and does not go.
 - There could have been circumstances in which the reasons are considerably stronger than the reasons that would exist if she were to have sufficient reason to do otherwise
 - Applies to commendable and blameworthy acts too
- Sufficiency: seems plausible
 - Reasonable to think that Jennifer is morally responsible for going to the basketball game to the extent that she acts on a weakly reasons-responsive mechanism
- Refinement: tracing
 - E.g. Max goes to a party where he drinks so much that he is oblivious to his surroundings. In this state of intoxication, he gets into his car and tries to drive home. Unfortunately, he runs over a child who is walking in a crosswalk. Although the actual sequence mechanism issuing in Max’s running over the

child is plausibly taken to lack reasons-responsiveness, we may nevertheless feel that Max is morally responsible for running over the child

- General Problem: an agent's act at a time T1 issues from a reasons-responsive sequence, and this act causes his act at T2 to issue from a mechanism that is not reasons-responsive
 - Max can be held morally responsible for his action at T2 in virtue of the operation of a suitable sort of reasons-responsive mechanism at a prior time T1, which makes him morally responsible for his action (drinking) at T1
 - Seems to be able to solve cases of ignorance too → i.e. ignorance because one is lazy
- Can also be for making sense of an agent cultivating dispositions to act virtuously in circumstances where this urge to act virtuously is so irresistible
 - Wolf's case of acting in accordance with the True and the Good
- Only when it is true that at no suitable point along the path to the action did a reasons-responsive sequence occur that an agent will not be properly held responsible
- Fischer advocates for semi-compatibilism: moral responsibility is compatible with causal determinism even if causal determinism is incompatible with the freedom to do otherwise
- Limitations of WRR: requirements on reasons recognition are more stringent than those on reasons-reactivity for moral responsibility
- Objection I: Mere coincidence of doing otherwise and sufficient reasons
 - WRR does not require agents to do otherwise (in the relevant possible worlds) *because* there is sufficient reason to do otherwise
 - E.g. Consider a person who suffers a nervous tic, which causes her to shatter her host's priceless Steuben egg. Imagine a possible world in which instead of bringing about a broken glass egg, the nervous tic causes the woman to spill a tall pitcher of lemonade on her host's lap – an act that, coincidentally there is good reason to perform, since the host's trousers have just been set ablaze by his cigarette ash.
 - She clearly did not act in that alternate way because there were sufficient reasons → instead, sufficient reasons coincided with her doing something else
 - Require appropriate connectedness between reasons to do otherwise and an agent's doing otherwise (or the mechanism)
 - We expect that an agent does otherwise for that reason
 - Prima facie reply: add a clause that requires the agent to do otherwise for that reason
- Objection II: Strange patterns of actions

- E.g. Consider the case in which an assassin would kill someone no matter what reasons were presented to him except one possible scenario – the reason he is presented with is that he should not kill the person because someone is smoking a Gambier pipe
- Meets the conditions for WRR but the mechanism of practical reasoning responds to such an unusual reason, that we may want to say he is simply manifesting erratic behaviour and should count as evidence of his insanity and lack of responsibility
- We want to restrict reasons-responsive mechanisms to only those whose response varies as a function of the strength of the reasons presented
 - We expect that as the strength of the reasons is increased, a point will be reached at which the agent, acting on the actual mechanism, will respond differently
- WRR does not require this sort of patterns of responsiveness

Problem I: which mechanism do we look at?

- Many many mechanisms and need to figure out which to look at
- Suppose you deliberate in a normal way about whether to donate 5% of your salary to the United Way, and that you decide to make the donation and act on your decision.
 - If the actually operative mechanism, “deliberation preceding donating 5% of one’s salary to the United Way” then you would give 5% of your salary to the United Way in any logically possible scenario → this sort of mechanism is not reasons responsive
- But such mechanisms are not relevant to the moral responsibility ascriptions because it is not a “temporally intrinsic” mechanism → it already includes the action it is supposed to cause
 - “deliberation preceding donating 5% of one’s salary to the United Way” entails giving 5% of your salary to the United Way
- Necessary condition of a mechanism’s relevance to ascriptions of guidance control that it be a “temporally intrinsic” or “nonrelational” mechanism: if a mechanism M issues in act A, then M is relevant to the agent’s guidance control of A only if M’s operating does not entail that A occurs
- Only way to pick out the relevant mechanism out of many is intuition → presupposition of the theory that there is an intuitively natural mechanism that is appropriately selected as the mechanism that issues in action for the purpose of assessing guidance control and moral responsibility

View: Moderate Reasons Responsiveness

- Preliminaries
 - Receptivity to reason: capacity to recognise reasons

- Reactivity to reasons: capacity to translate reasons into choices
- Asymmetric requirements: while a very weak sort of reactivity is required, a stronger sort of receptivity to reasons is necessary for moderate reasons responsiveness which grounds moral responsibility
 - Motivation: Brown, a weak-willed individual with a strong craving for a non-addictive drug P. If used infrequently, it has no harmful side effects; but it is so powerful that it lasts for hours and during this time, it renders the user unable to do anything except recline on the sofa. Frequent use results in loss of job, family and self-respect
 - Brown is so fond of P and lacking in self-discipline that although he recognises that there are strong reasons not to take the drug every morning, he ends up passing his day on the couch. The only scenario which Brown would not take P is one in which he is told that injecting the drug once more would have an extremely grave consequence – death
 - Brown is only weakly reactive to reasons because he is weak willed → but this is all that is needed
 - Weak receptivity is not all the receptivity which is needed: needs more structure → imagine Brown recognises that P costing \$1000 is a strong reason not to take P, but he only recognises this price point \$1000 as a strong reason not to take P; that is, P costing more than \$1000 is not a strong reason not to take P → only recognises \$1000 as the strong deterrent
 - Wonder whether he is actually morally responsible
 - Weak receptivity is not all that is needed for moral responsibility
 - We want to say that one must be regularly receptive to reasons: must exhibit a certain sort of pattern of reasons-recognition that is understandable
 - Conduct an imaginary interview with the agent and elicits views from the agent as to what would consider sufficient reasons → satisfies an objective condition
 - E.g. In the Gambier Pipe case, if we were to find out that the Assassin was actually an operative and the Gambier Pipe was the agreed upon signal to call off the assassination, then we would ascribe responsibility to his action → in the interview, it would be something like what if their handler told them to stop
- In the case of receptivity, the agent must exhibit an understandable pattern of reasons-recognition, in order to render it plausible that his mechanism has the “cognitive power” to recognise the actual incentive to do otherwise; in the case of reactivity, the agent must simply display some reactivity in order to render it

plausible that his mechanism has the “executive power” to react to the actual incentive to do otherwise